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MCQ BOOKLET

INSOLVENCY AND BANKRUPTCY CODE, 2016

1. What is the enactment date of the Insolvency and Bankruptcy Code, 2016?
 - a. 28 June, 2016
 - b. 28 May, 2016
 - c. 28 July, 2015
 - d. 28 July, 2016
 - e. 28 September, 2016
2. Which of the following is not an objective of the Insolvency and Bankruptcy Code, 2016?
 - a. Promote entrepreneurship
 - b. Increase the availability of credit
 - c. Insolvency resolution of corporate persons
 - d. To deal with cross-border insolvency
 - e. Recovery of loans by creditors
3. Who is the Corporate Debtor as per the Insolvency and Bankruptcy Code?
 - a. Corporate applicant who owes a debt
 - b. A legal entity owes a debt to any person
 - c. Company who borrows from any company
 - d. Company who owes a debt to any person
 - e. Corporate person who owes a debt to any person
4. Who can initiate Corporate Insolvency Resolution Process as per IBC?
 - a. Corporate Debtor
 - b. Corporate Applicant
 - c. Corporate Debtor and Financial Creditor
 - d. Financial Creditor and Operational Creditor
 - e. Financial Creditor, Operational Creditor and Corporate Applicant
5. Who is a financial creditor under the IBC?
 - a. Any person to whom a financial debt is owed
 - b. Any person having a claim on the services of a second party
 - c. Any person to whom a debt is owed and includes a financial creditor, an operational creditor, a secured creditor, an unsecured creditor
 - d. Any person to whom a financial debt is owed and includes a person to whom such debt has been legally assigned or transferred to
 - e. Either a or b or c or d
6. Which of the following is the regulatory and supervisory body under the IBC?
 - a. National Company Law Tribunal
 - b. Indian Institute of Corporate Affairs
 - c. Insolvency and Bankruptcy Board of India
 - d. Indian Board for Insolvency and Bankruptcy
 - e. Indian Institute of Insolvency and Bankruptcy

7. What is the time frame within which Corporate Insolvency Resolution Process should be completed?
 - a. 90 days from the date of admission of the application to initiate such process
 - b. 120 days from the date of admission of the application to initiate such process
 - c. 180 days from the date of admission of the application to initiate such process
 - d. 118 days from the date of admission of the application to initiate such process
 - e. 330 days from the date of admission of the application to initiate such process
8. What is the tenure of an interim resolution professional?
 - a. Till 180 days from the date of appointment
 - b. Till the date as the Adjudicating Authority may decide
 - c. Till the conclusion of the insolvency resolution process
 - d. Till the date of appointment of the resolution professional
 - e. Till such time period as the Central Government may specify
9. Who is responsible for the management of the affairs of a corporate debtor undergoing corporate insolvency resolution process as per section 17 of the IBC?
 - a. Tribunal
 - b. Board of Directors
 - c. Committee of Creditors
 - d. Interim Resolution Professional
 - e. Insolvency and Bankruptcy Board of India
10. What is the composition of the committee of creditors?
 - a. Financial lenders only
 - b. Secured creditors only
 - c. Operational creditors only
 - d. Independent financial creditors only
 - e. All financial creditors of the corporate debtor
11. As per section 7 of the IBC who is considered as an applicant.
 - a. Corporate person
 - b. Corporate Debtor
 - c. Financial Creditor
 - d. Operational Creditor
 - e. Corporate Applicant
12. Which of the following Acts have not been amended by the Insolvency and Bankruptcy Code, 2016?
 - a. The Customs Act, 1962
 - b. The Companies Act, 2013
 - c. The Income Tax Act, 1961
 - d. The Transfer of Property Act, 1882
 - e. The Limited Liability Partnership Act, 2008

13. The Resolution professional shall continue as the liquidator unless replaced by
- DRT
 - NCLAT
 - Insolvency Board
 - Adjudicating Authority
 - Official Liquidator of the MCA
14. What is the time period for completing fast track corporate insolvency resolution process?
- 30 Days
 - 45 Days
 - 60 Days
 - 90 Days
 - 180 Says
15. From where shall the fees for the liquidation process be paid to the liquidator?
- Liquidation fund
 - Liquidation estate
 - Insolvency Fund of IBBI
 - Creditors contribution
 - Capital Reserves of the corporate debtor
16. The order of moratorium under the Corporate Insolvency resolution process shall have effect from the date of such order till _____
- A compulsory period of 90 days
 - A compulsory period of 180 days
 - Appointment of the Resolution Professional
 - Date of appointment of committee of creditors
 - Completion of the corporate insolvency resolution process
17. What is the time period for the extension of the fast-track resolution process beyond the period of ninety days?
- 20days
 - 30days
 - 45days
 - 60 days
 - 90 days
18. To whom shall the notice of each meeting of committee of creditors not be given?
- Operational creditors
 - Adjudicating authority
 - Partners of the corporate persons
 - Members of committee of creditors
 - Members of the suspended board of directors of the corporate persons

19. How can the committee of creditors replace the resolution professional?
- After the expiry of 90 days
 - By a vote of 55% of voting shares
 - By a vote of 75% of voting shares
 - By a vote of 66% of voting shares
 - After the conclusion of the resolution process
20. Which of the following committee made recommendations of the Code?
- Tiwari Committee
 - Narasimham committee
 - Raja Chelliah Committee
 - Bankruptcy Law Reforms Committee
 - Bankruptcy & Insolvency Law Reforms Committee
21. The Moratorium period under IBC shall have effect _____
- After the date of such order till the completion of the corporate insolvency resolution process
 - From the date from which the Adjudicating Authority may approve till the completion of the corporate insolvency resolution process
 - From the date from which the corporate debtor agrees till the completion of the corporate insolvency resolution process
 - From the date on which the Adjudicating Authority admits or rejects the application
 - From the date of declaration of moratorium order by the Adjudicating Authority till the completion of the corporate insolvency resolution process
22. Where can a person aggrieved by an order of the National Company Law Appellate Tribunal may file an appeal as per the IBC?
- IBBI
 - NCLT
 - High Court
 - Supreme Court
 - There is no provision for an appeal
23. What is the time period within which the liquidator should communicate his decision of admission or rejection of claims to the creditor and corporate debtor as per IBC?
- 7 days
 - 15 days
 - 60 days
 - 90 days
 - 30 days

24. When can a creditor, member, or partner of a corporate debtor apply to the Adjudicating Authority to declare undervalued transactions void and reverse its effects, as per the Insolvency and Bankruptcy Code??
- If the transaction involves a related party
 - If the transaction has taken place without proper documentation
 - If the liquidator or resolution professional has reported the transaction
 - If the transaction has been approved by the corporate debtor's shareholders
 - If the liquidator or resolution professional has not reported the transaction
25. Who shall hold the liquidation estate as a fiduciary for the benefit of all the creditors?
- Liquidator
 - Corporate debtor
 - Financial Creditor
 - Operational Creditor
 - Adjudicating Authority
26. In the context of the Insolvency and Bankruptcy Code, what action can a creditor take if they disagree with the decision made by the liquidator regarding the acceptance or rejection of claims?
- The creditor has no recourse in this situation
 - The creditor can file a separate lawsuit in a civil court
 - The creditor can appeal to the National Company Law Tribunal
 - The creditor can request a review from the resolution professional
 - The creditor can submit the claim again with additional documentation
27. The IBC is applicable to _____
- Banks
 - Limited Liability Partnerships
 - Partnership firms or proprietorship firms
 - Companies incorporated under Companies Act
 - All b, c & d
28. Corporate insolvency resolution process shall mandatorily be completed within a period of _____ from the insolvency commencement date, including any extension of the period of corporate insolvency resolution process granted under this section and the time taken in legal proceedings in relation to such resolution process of the corporate debtor
- 180 days
 - 280 days
 - 330 days
 - 380 days
 - At the discretion of the NCLT

29. Part II of the IBC shall apply to the matters relating to the insolvency and liquidation of corporate debtors where the _____
- Minimum amount of the default is one lakh rupee
 - Minimum amount of the default is ten lakh rupees
 - Minimum amount of the default is one crore rupees
 - Maximum amount of the default is one crore rupees
 - Maximum amount of the default is ten crore rupees
30. During the period when moratorium is declared by the Adjudicating Authority which of the following is prohibited?
- Institution of suits or continuation of pending suits or proceedings against the corporate debtor
 - Transferring, encumbering, alienating or disposing of by the corporate debtor any of its assets
 - Any action to foreclose, recover or enforce any security interest created by the corporate debtor in respect of its property
 - All the above
 - Either of the above
31. As per the IBC Insolvency Commencement date means _____
- Date of supply of goods and services
 - Date on which an application is made to the adjudicating authority
 - Date of admission of an application for initiating CIRP by the NCLAT
 - Date of admission of an application for initiating CIRP by the Adjudicating Authority
 - Date of admission or rejection of an application for initiating CIRP by the Adjudicating Authority
32. Who is an Insolvency Professional under IBC?
- Person enrolled under section 206 with an insolvency professional agency as its member
 - Person registered with the Board as an insolvency professional under section 207
 - Person appointed to conduct the CIRP or the PPIRP, as the case may be
 - Both (a) & (b)
 - Either a or b or c
33. What is the time period within which the pre-packaged insolvency resolution process shall be completed?
- One hundred and eighty days
 - One hundred and twenty days
 - Two hundred and twenty days
 - Three hundred and twenty days
 - Three hundred and thirty days

34. Who can make an application for the initiation of the pre-packaged insolvency resolution process under the IBC?
- Creditors
 - Corporate Person
 - Corporate Debtor
 - Corporate Applicant
 - Insolvency Professionals
35. When can liquidation process of the corporate debtor be initiated as per section 33 of IBC?
- If Adjudicating Authority does not receive the resolution plan before the expiry of the insolvency resolution process period or the maximum period permitted for completion of the CIRP
 - If Adjudicating Authority does not receive the resolution plan after the expiry of the insolvency resolution process period and the maximum period permitted for completion of the CIRP
 - Rejection of the resolution plan by the Adjudicating Authority under section 31 for the non-compliance of the requirements specified therein
 - Both (a) & (c)
 - Both (b) & (c)
36. The Central Government specified _____ as the minimum amount of default for the matters relating to the pre-packaged insolvency resolution process of corporate debtor
- One lakh rupee
 - Ten lakh rupees
 - One crore rupee
 - Hundred crore rupees
 - No amount has been specified
37. Which of the following shall not be included in the liquidation estate assets and shall not be used for recovery in the liquidation?
- Assets of any Indian or foreign subsidiary of the corporate debtor
 - Assets owned by a third party which are in possession of the corporate debtor
 - Assets in security collateral held by financial services providers and are subject to netting and set-off in multi-lateral trading or clearing transactions
 - Personal assets of any shareholder or partner of a corporate debtor as the case may be provided such assets are not held on account of avoidance transactions
 - All a b c & d
38. Which is correct statement with respect to Liquidation Estate?
- Liquidator forms the liquidation estate
 - Liquidator holds the liquidation estate as a fiduciary for the benefit of all the creditors

- c. Liquidation estate consists of the assets owned by a third party which are in possession of the corporate debtor
 - d. All the above
 - e. Both (a) & (b)
39. What is the correct order of priority for the distribution of assets from the proceeds from the sale of the liquidation assets as per the IBC?
- a. Financial debts owed to unsecured creditors
 - b. Preference shareholders, if any
 - c. Equity shareholders or partners, as the case may be
 - d. Insolvency resolution process costs and the liquidation costs paid in full
 - e. Wages and any unpaid dues owed to employees other than workmen for the period of twelve months preceding the liquidation commencement date
- i. d, e, a, b, c
 - ii. a, b, c, d, e
 - iii. b, c, d, e, a
 - iv. e, d, b, c, a
 - v. e, d, a, b, c
40. Who are the persons who are not entitled to make an application to initiate corporate insolvency resolution process?
- a. Corporate debtor undergoing a corporate insolvency resolution process or a pre-packaged insolvency resolution process
 - b. Corporate debtor having not completed corporate insolvency resolution process twelve months preceding the date of making of the application
 - c. Corporate debtor or a financial creditor who has violated any of the terms of resolution plan which was approved twelve months before the date of making of an application
 - d. All the above
 - e. Either a or c
41. The committee of creditors, may, in the first meeting, by a majority vote of not less than sixty-six percent of the voting shares of the financial creditors, _____
- a. Resolve to appoint the interim resolution professional as a resolution professional
 - b. Resolve to replace the interim resolution professional by another resolution professional
 - c. Seek the Boards opinion whether to appoint resolution professional or not
 - d. Either a or b
 - e. Either a or b or c
42. What is the time period within which the first meeting of the Committee of Creditors be held as per the IBC?
- a. Seven days
 - b. Within seven days of constitution of CoC

- c. Before seven days of the constitution of the CoC
 - d. After seven days of the constitution of the CoC
 - e. Within seven days after the approval of the resolution professional
43. A preference shall be deemed to be given at a relevant time, if _____
- a. It is given to a related party during the period of one year preceding the insolvency commencement date
 - b. If it is given to a related party during the period of two years preceding the insolvency commencement date
 - c. A preference is given to a person other than a related party during the period of one year preceding the insolvency commencement date
 - d. Both (a) & (c)
 - e. Either (b) or (c)
44. Is there any time period within which the fast-track corporate insolvency resolution process shall be completed as per IBC?
- a. Thirty days from the insolvency commencement date
 - b. Sixty days from the insolvency commencement date
 - c. Ninety days from the insolvency commencement date
 - d. One- twenty days from the insolvency commencement date
 - e. Two- eighty days from the insolvency commencement date
45. The Fast Track CIRP completion period can be extended by a resolution passed at a meeting of the committee of creditors and supported by _____
- a. 50% of the voting share
 - b. 55% of the voting share
 - c. 65% of the voting share
 - d. 66% of the voting share
 - e. 75% of the voting share
46. If the Adjudicating Authority is satisfied that fast track corporate insolvency resolution process cannot be completed within a period of ninety days, it may, by order, extend the duration of such process by such further period but not exceeding _____
- a. Thirty-five days
 - b. Forty-five days
 - c. Sixty days
 - d. Ninety days
 - e. One-twenty days
47. Under Section 59 of the Insolvency and Bankruptcy Code (IBC), which conditions must be met for voluntary liquidation proceedings of a corporate person registered as a company?
- a. The majority of directors must declare, verified by an affidavit, that the company has no debt and is not being liquidated to defraud anyone

- b. The declaration must be accompanied by audited financial statements, business operation records, and an asset valuation report prepared by a registered value
 - c. Within four weeks of the declaration, either a special resolution or a resolution of the members must be passed, appointing an insolvency professional as the liquidator
 - d. If the company owes debts, the resolution passed must be approved by creditors representing two thirds in value of the company's debt within seven days
 - e. All a b c & d
48. The liquidator shall form an estate of the assets of the corporate debtor during liquidation process which is known as _____
- a. Liquidation funds
 - b. Liquidation Asset
 - c. Liquidation Estate
 - d. Liquidation property
 - e. Liquidation Asset of the creditors
49. Under the IBC who shall propose the name of another insolvency professional along with written consent from the insolvency professional in the specified form within ten days of the direction issued by the Adjudicating Authority
- a. Board of Directors
 - b. Central Government
 - c. National Company Law Tribunal
 - d. National Company Law Appellate Tribunal
 - e. Insolvency and Bankruptcy Board of India
50. When can the Adjudicatory Authority order the replacement of the resolution professional to act as the liquidator?
- a. Resolution professional submits a written consent as required under section 34(1)
 - b. Resolution plan submitted by the resolution professional was rejected for failure to meet the requirements
 - c. Board recommends the replacement of a resolution professional to the Adjudicating Authority
 - d. Either b or c
 - e. Either a, b or c
51. Where the Adjudicating Authority passes an order for liquidation of the corporate debtor the resolution professional appointed for the _____ shall act as the liquidator for the purposes of liquidation
- a. Liquidation process
 - b. Corporate insolvency resolution process
 - c. Pre-packaged insolvency resolution process
 - d. Either a or b
 - e. Either b or c

52. When can the liquidation process be initiated as per section 33 of the IBC?
- Where the Committee of Creditors resolve to liquidate the corporate debtor
 - Where the Adjudicatory Authority does not receive a resolution plan before the expiry of the insolvency resolution process period or the maximum period permitted for completion of the corporate insolvency resolution process
 - Where the Adjudicating Authority rejects the resolution plan for the non-compliance of the requirements specified
 - Both a & c
 - Both b & c
53. What does resolution plan mean as per the IBC?
- Resolution plan provided by the corporate debtor under section 54A
 - Plan proposed by resolution applicant for insolvency resolution of the corporate debtor as a going concern in accordance with Part II
 - Plan proposed by any person for insolvency resolution of the corporate debtor as a going concern in accordance with Part II
 - Either a or b or c
 - Both a & c
54. Insolvency commencement date as per the IBC means _____
- Date on which the resolution professional receives the claims from the resolution applicants
 - Date on which an application is made for initiating corporate insolvency resolution process to the Adjudicating Authority
 - Date of admission of an application for initiating corporate insolvency resolution process by the Adjudicating Authority
 - Date of admission of an application for initiating corporate insolvency resolution process by the Appellate Authority
 - Either c or d
55. _____ shall conduct the entire corporate insolvency resolution process and manage the operations of the corporate debtor during the corporate insolvency resolution process period as per the provisions of the IBC section 27
- Adjudicating Authority
 - Resolution Professional
 - Insolvency Professional
 - Interim Resolution Professional
 - Insolvency and Bankruptcy Board of India
56. The duties of the interim resolution professional as per the IBC are _____
- To constitute a committee of creditors
 - Monitor the assets of the corporate debtor and manage its operations until a resolution professional is appointed by the committee of creditors

- c. To collect all information relating to the assets, finances and operations of the corporate debtor
 - d. Both a & c
 - e. All a, b & c
57. Under the IBC the _____ shall submit the resolution plan as approved by the committee of creditors to the Adjudicating Authority
- a. Financial creditors
 - b. Operational creditor
 - c. Resolution Applicant
 - d. Resolution professional
 - e. Interim Resolution Professional
58. As per the IBC the resolution professional shall examine each resolution plan received by him to confirm that each resolution plan _____
- a. Provides for the payment of debts of operational creditors
 - b. Provides for the payment of insolvency resolution process costs in priority to the payment of other debts of the corporate debtor
 - c. Provides for the management of the affairs of the corporate debtor after approval of the resolution plan
 - d. All a, b & c
 - e. Both a & b
59. What is the correct sequence for the replacement of resolution professional by committee of creditors as laid down under the IBC?
- a. The committee of creditors shall forward the name of the insolvency professional proposed by them to the Adjudicating Authority
 - b. The Adjudicating Authority shall forward the name of the proposed resolution professional to the Board for its confirmation
 - c. Written consent of the proposed resolution professional be taken in the specified form
 - d. The committee of creditors may, at a meeting, by a vote of sixty-six per cent of voting shares resolve to replace the resolution professional
- i. C, A, D, B
 - ii. D, C, A, B
 - iii. D, A, C, B
 - iv. A, B, C, D
 - v. B, A, C, D
60. Under the IBC where the committee of creditors resolves to replace the interim resolution professional, it shall _____
- a. Take the written consent from the proposed resolution professional in the specified form

- b. File an application before the Adjudicating Authority for the appointment of the proposed resolution professional
 - c. File an application before the Board for the appointment of the proposed resolution professional
 - d. Both a & b
 - e. Both a & c
61. Where the committee of creditors resolves to continue the interim resolution professional as resolution professional subject to a written consent from the interim resolution professional, it shall communicate its decision to the _____
- a. Corporate debtor
 - b. Adjudicating Authority
 - c. Interim resolution professional
 - d. All a, b & c
 - e. Both a & c
62. According to IBC what do the committee of creditors resolve to do in the first meeting by a majority vote of not less than sixty-six per cent of the voting share of the financial creditors _____
- a. Resolve to appoint the interim resolution professional as a resolution professional
 - b. To replace the interim resolution professional by another resolution professional
 - c. Resolve to take all the decisions by a majority vote
 - d. Both a & b
 - e. Either a or b
63. Under the IBC the first meeting of the committee of creditors shall be held within seven days of the _____
- a. Appointment of resolution professional
 - b. Constitution of the committee of creditors
 - c. Appointment of interim resolution professional
 - d. Application being made to the Adjudicating Authority for the initiation of the corporate insolvency resolution professional
 - e. Recommendation for the appointment of the resolution professional by the Adjudicating Authority to the Board
64. According to the provisions of the IBC the directors, partners and one representative of operational creditors, may attend the meetings of committee of creditors but shall not have any right to vote in such meetings. The statement is _____
- a. True
 - b. False
 - c. At the discretion of the committee of creditors

- d. As the Adjudicating Authority may decide on the recommendation of the Board
 - e. Be decided by the resolution professional based on the order of the Adjudicating Authority
65. As per the IBC to whom shall the resolution professional give a notice of each meeting of the committee of creditors?
- a. Members of committee of creditors
 - b. Members of the suspended Board of Directors of the corporate persons
 - c. Operational creditors if the amount of their aggregate dues is not less than ten per cent of the debt
 - d. All a, b & c
 - e. Both a & b
66. The members of the committee of creditors may meet _____
- a. In person
 - b. Through conferencing
 - c. By such electronic means as may be specified
 - d. All a, b & c
 - e. Either a or c
67. According to the provisions of the IBC where any person is a financial creditor as well as an operational creditor such person shall _____
- a. Be considered to be financial creditor to the extent of the operational debt owed by the corporate debtor to such creditor
 - b. Be a financial creditor to the extent of the financial debt owed by the corporate debtor and be included in the committee of creditors
 - c. Be at the discretion to be either financial or operational creditor to the extent of entire debt owned by the corporate debtor to such creditor
 - d. Either a or b or c
 - e. Be the creditor as the committee of creditors may decide by a fifty-one per centage of voting
68. What is the time period within which the resolution professional shall make available any financial information required by the committee of creditors to it under the IBC?
- a. Within a period of seven days of such requisition
 - b. Within a period of fifteen days of such requisition
 - c. Within a period of thirty days of such requisition
 - d. Within the time period as may be specified by the Board
 - e. Within such time period as the committee of creditors may specify in the notice of requisition
69. The committee of creditors shall comprise all _____ of the corporate debtor as laid down under the IBC
- a. Lenders

- b. Creditors
 - c. Financial creditors
 - d. Operational creditors
 - e. Both c & d
70. According to the IBC who shall constitute the committee of creditors?
- a. Resolution Professional
 - b. Adjudicating Authority
 - c. Interim resolution professional
 - d. Insolvency Resolution professional
 - e. Insolvency and Bankruptcy Board of India
71. The Board shall, _____ of the receipt of a reference from the Adjudicating Authority for the recommendation of an insolvency professional who may act as an interim resolution professional; recommend the name of an insolvency professional under IBC
- a. Within seven days
 - b. Within ten days
 - c. Within fifteen days
 - d. Within thirty days
 - e. Within ninety days
72. The term resolution professional has been defined under the IBC as _____
- a. An insolvency professional appointed to conduct the corporate insolvency resolution process
 - b. An insolvency professional appointed to conduct the prepackaged insolvency resolution process
 - c. An insolvency professional appointed to conduct the corporate insolvency resolution process or the prepackaged insolvency resolution process, as the case may be, does not include an interim resolution professional
 - d. An insolvency professional appointed to conduct the corporate insolvency resolution process or the prepackaged insolvency resolution process, as the case may be, and includes an interim resolution professional
 - e. Either a or b
73. Where the application for corporate insolvency resolution process is made by an operational creditor and no proposal for an interim resolution professional is made _____
- a. The Board shall make a reference to the Adjudicating Authority for the recommendation of an insolvency professional who may act as an interim resolution professional
 - b. The Board has the discretion to recommend the name of the insolvency professional who may act as an interim resolution professional

- c. The Adjudicating Authority shall make a reference to the Board for the recommendation of an insolvency professional who may act as an interim resolution professional
 - d. The Board shall, within ten days from the date of no proposal being made for an interim resolution professional; recommend the name of an insolvency professional
 - e. None of the above
74. The _____ shall appoint an interim resolution professional on the insolvency commencement date
- a. Committee of Creditors
 - b. Adjudicating Authority
 - c. Central Government
 - d. Insolvency and Bankruptcy Board of India
 - e. Parties initiating the corporate insolvency resolution process
75. What all information is required to be contained in the public announcement of the corporate insolvency resolution process?
- a. Name and address of the corporate debtor under the corporate insolvency resolution process
 - b. Name of the authority with which the corporate debtor is incorporated or registered
 - c. Details of the interim resolution professional who shall be vested with the management of the corporate debtor and be responsible for receiving claim
 - d. All a, b & c
 - e. Both a & b
76. The Adjudicating Authority, after admission of the application for the initiation of the CIRP under the IBC, shall, by an order _____
- a. Declare a moratorium
 - b. Appoint an interim resolution professional
 - c. Cause a public announcement of the initiation of corporate insolvency resolution process
 - d. Both a & b
 - e. All a b & c
77. When is a public announcement made with respect to the initiation of the corporate insolvency resolution process under the IBC?
- a. Immediately after the appointment of the resolution professional
 - b. Immediately after the commencement of the corporate insolvency resolution process
 - c. Immediately after the admission of application for the initiation of the corporate insolvency resolution process
 - d. Immediately after the appointment of the interim resolution professional

- e. At the discretion of the Adjudicating Authority once the corporate insolvency resolution process begins
78. The supply of essential goods or services to the corporate debtor as may be specified shall not be terminated or suspended or interrupted during _____
- a. Moratorium period
 - b. Public Announcement
 - c. Insolvency Commencement Date
 - d. All a, b & c
 - e. Such period which the Adjudicating Authority may specify in its order
79. The withdrawal of the application admitted under section 7 or section 9 or section 10 may be withdrawn on an application made by the applicant with the approval of ninety per cent voting share of the committee of creditor, if allowed by _____
- a. Central Government
 - b. Adjudicating Authority
 - c. Committee of creditors
 - d. Insolvency and Bankruptcy Board of India
 - e. Either b or d
80. Under the IBC the liquidator shall receive or collect the claims of creditors within a period of _____ from the date of the commencement of the liquidation process
- a. Seven days
 - b. One month
 - c. Thirty days
 - d. Ninety days
 - e. Forty-five days
81. As per section 38 of IBC a creditor may withdraw or vary his claim within _____ of its submission
- a. Fourteen days
 - b. One month
 - c. Thirty days
 - d. Forty-five days
 - e. Ninety days
82. The liquidator shall after the verification of claims under the IBC _____
- a. Admit the claim
 - b. Reject the claim
 - c. Either admit or reject the claim
 - d. Shall proceed as per the directions of the Board
 - e. Shall liquidate the corporate debtor

83. According to the IBC the liquidator shall communicate his decision of admission or rejection of claims to the creditor and corporate debtor within _____ of such admission or rejection of claims
- Seven days
 - Fifteen days
 - Fourteen days
 - Thirty days
 - Ninety days
84. As per section 42 of the IBC a creditor may appeal to the _____ against the decision of the liquidator accepting or rejecting the claims within fourteen days of the receipt of such decision
- IBBI
 - DRT
 - Adjudicating Authority
 - All a b & c
 - Either a or c
85. As per the IBC a copy of the order of the Adjudicating Authority dissolving the corporate debtor shall within _____, be forwarded to the authority with which the corporate debtor is registered
- Seven days
 - Seven days from the date of order
 - Seven days from the date of liquidation of assets
 - Seven days from the date of application to the Adjudicating Authority
 - Fourteen days from the date of order of the Adjudicating Authority
86. When shall a corporate debtor be deemed to have given a preference as per the provisions of preferential transactions under the IBC?
- If there is a transfer of property or an interest thereof of the corporate debtor for the benefit of a creditor or a surety or a guarantor for or on account of an antecedent financial debt or operational debt or other liabilities owed by the corporate debtor
 - If the transfer is made in the ordinary course of the business or financial affairs of the corporate debtor or the transferee
 - If the transfer has the effect of putting a creditor or a surety or a guarantor in a beneficial position than it would have been in the event of a distribution of assets
 - All a b & c
 - Both b & c
87. A preference shall be deemed to be given at a relevant time under the IBC if it is given to a related party, during the period of _____
- Two preceding financial year

- b. Two preceding calendar year
 - c. Two years preceding the insolvency commencement date
 - d. Two years after the conclusion of the process
 - e. Such number of years as the Board may specify
88. As laid down under section 43 of the IBC a preference by a corporate debtor shall not include _____
- a. Transfer made in the ordinary course of the business or financial affairs of the corporate debtor or the transferee
 - b. Any transfer creating a security interest in property acquired by the corporate debtor to the extent that such transfer was registered with an information utility on or before thirty days after the corporate debtor receives possession of such property
 - c. Any transfer creating a security interest in property acquired by the corporate debtor to the extent that such transfer was registered with an information utility on or before sixty days after the corporate debtor receives possession of such property
 - d. Both a & b
 - e. Both b & c
89. A preference shall be deemed to be given at a relevant time under the IBC if a preference is given to a person other than a related party during the period of _____
- a. One year preceding the insolvency commencement date
 - b. Two years preceding the insolvency commencement date
 - c. One hundred and twenty days preceding the insolvency commencement date
 - d. One year after the conclusion of the insolvency commencement date
 - e. No such specific time period has been laid down under the Code
90. When shall a transaction be considered undervalued transaction under the IBC?
- a. Where the corporate debtor makes a gift to a person
 - b. Where the corporate debtor enters into a transaction with a person involving the transfer of assets for a consideration the value of which is significantly less than the value of the consideration provided by the corporate debtor
 - c. Where the corporate debtor enters into a transaction with a person involving the transfer of assets for a consideration the value of which is significantly more than the value of the consideration provided by the corporate debtor, and such transaction has not taken place in the ordinary course of business of the corporate debtor
 - d. Either a or b
 - e. Either a or c
91. What is the relevant time period for avoidable transactions under the IBC?
- a. One year preceding the insolvency commencement date with any person
 - b. Two years preceding the insolvency commencement date with a related party

- c. Two years after the insolvency commencement date with a related party
 - d. Both a & b
 - e. Either a or c
92. Who can make an application to the Adjudicating Authority for avoidance of extortionate credit transactions if the terms of such transaction required exorbitant payments to be made by the corporate debtor as per the provisions of the IBC?
- a. Liquidator
 - b. Corporate debtor
 - c. Resolution professional
 - d. Either a or b or c
 - e. Either a or c
93. Under the IBC the Adjudicating Authority, in relation to insolvency resolution and liquidation for corporate persons including corporate debtors and personal guarantors thereof shall be the _____
- a. Debt Recovery Tribunal
 - b. Company Law Tribunal
 - c. National Company Law Tribunal
 - d. National Corporate law Tribunal
 - e. National Company Law Appellate Tribunal
94. As per the provisions laid down under the IBC any person aggrieved by the order of the Adjudicating Authority under Part 2 may prefer an appeal to the _____
- a. High Court
 - b. Supreme Court
 - c. Appellate Authority
 - d. National Company Law Tribunal
 - e. National Company Law Appellate Tribunal
95. As per the provisions laid down under the IBC every appeal shall be filed within _____ before the National Company Law Appellate Tribunal
- a. Fourteen days
 - b. Thirty days
 - c. Sixty days
 - d. Forty-five days
 - e. Ninety days
96. Under IBC an application admitted for CIRP may be withdrawn, on an application made by the applicant, if allowed by the _____
- a. Adjudicating Authority
 - b. Committee of creditors

- c. Insolvency and Bankruptcy Board of India
 - d. Either b or d
 - e. None of the above
97. Under the IBC the National Company Law Appellate Tribunal may allow an appeal to be filed after the expiry of the period of thirty days if it is satisfied that there was sufficient cause for not filing the appeal but such period shall _____
- a. Not exceed fifteen days
 - b. Not exceed thirty days
 - c. Not exceed sixty days
 - d. Not exceed ninety days
 - e. Not exceed one hundred and fifteen days
98. As per the provisions of the IBC an appeal to the Supreme Court may be filed by any person aggrieved by an order of the National Company Law Appellate Tribunal _____
- a. Within forty-five days from the date of receipt of such order
 - b. On a question of law arising out of such order within forty-five days from the date of receipt of such order
 - c. On a question of fact arising out of such order within forty-five days from the date of receipt of such order
 - d. On any question arising out of such order within forty-five days from the date of receipt of such order
 - e. On any question on which the party feels aggrieved and is arising out of such order within forty-five days from the date of receipt of such order
99. IBC provides that the Supreme Court may, if it is satisfied that a person was prevented by sufficient cause from filing an appeal within forty-five days, allow the appeal to be filed within a further period _____
- a. Exceeding fifteen days
 - b. Exceeding forty-five days
 - c. Not exceeding fifteen days
 - d. Not exceeding thirty days
 - e. Not exceeding forty-five days
100. Where an application is not disposed of within the period specified in this Code, the National Company Law Tribunal or the National Company Law Appellate Tribunal, as the case may be, shall extend the period specified in the Code _____
- a. Exceeding ten days
 - b. Exceeding thirty days
 - c. Not exceeding ten days
 - d. Not exceeding fifteen days
 - e. Not exceeding forty-five days

101. An application for initiating pre-packaged insolvency resolution process may be made in respect of _____ as laid down under the IBC
- Corporate debtor
 - Corporate applicant
 - Corporate debtor classified as a micro, small or medium enterprise
 - Corporate debtor not classified as a micro, small or medium enterprise
 - Both a & b
102. What are the conditions for making an application for initiating pre-packaged insolvency resolution process as laid down under the IBC?
- No order requiring it to be liquidated is passed
 - It is not undergoing a corporate insolvency resolution process
 - It has undergone pre-packaged insolvency resolution process or completed corporate insolvency resolution process, as the case may be, during the period of three years preceding the initiation date
 - All a b & c
 - Both a & b
103. _____ may file an application with the Adjudicating Authority for initiating pre-packaged insolvency resolution process as per the IBC
- Corporate debtor
 - Corporate applicant
 - Person who has the control and supervision over the financial affairs of the corporate debtor
 - All a b & c
 - Both a & c
104. The corporate applicant shall along with the application under section 54C of the IBC furnish _____
- Information relating to books of account of the corporate debtor
 - Approval of financial creditors for initiating pre-packaged insolvency resolution process
 - The name and written consent of the insolvency professional proposed to be appointed as resolution professional
 - All a b & c
 - Both a & b
105. The pre-packaged insolvency resolution process shall commence from _____
- The date of application
 - The date of admission of the application
 - The date of rejection of the application
 - The date of submission of the application
 - The date the Authority specifies as such

106. Under the IBC once the Adjudicating Authority receives an application for the initiation of the pre-packaged insolvency resolution process it shall _____
- Admit the application
 - Reject the application
 - Admit or reject the application within fourteen days of the receipt of the application
 - On rejection of the application give notice to the applicant to rectify the defect in the application within seven days from the date of receipt of such notice from the Adjudicating Authority
 - Either a or b
107. The pre-packaged insolvency resolution process shall be completed within a period of one hundred and twenty days from _____
- The date the application is submitted to the Authority
 - The pre-packaged insolvency commencement date
 - The date of admission or rejection of the application by the Authority
 - Either a or b or c
 - None of the above
108. As per section 54D of the IBC the resolution professional shall submit the resolution plan, as approved by the committee of creditors, to the Adjudicating Authority _____
- Within a period of ninety days from the pre-packaged insolvency commencement date
 - Within a period of ninety days from the submission of application for pre-packaged insolvency
 - Within a period of sixty days from the pre-packaged insolvency commencement date
 - Within a period of one hundred and twenty days from the pre-packaged insolvency commencement date
 - None of the above
109. According to section 54 D of the IBC provisions where no resolution plan is approved by the committee of creditors within the specified time period, the resolution professional shall, on the day after the expiry of such time period, file an application with the Adjudicating Authority for _____
- Extension of the period of pre-packaged insolvency resolution process
 - Termination of the pre-packaged insolvency resolution process
 - Execution of the pre-packaged insolvency resolution process
 - Either a or b
 - Either a or b or c

110. The Adjudicating Authority shall, on the pre-packaged insolvency commencement date, along with the order of admission _____ under the IBC
- Declare a moratorium
 - Appoint a resolution professional as named in the application
 - Cause a public announcement of the initiation of the pre-packaged insolvency resolution process to be made by the resolution professional
 - All a b & c
 - Both a & c
111. As provided under section 54E of the IBC the order of moratorium shall have effect from the date of such order _____
- Till the commencement of the prepackaged insolvency resolution process
 - Till the date on which the prepackaged insolvency resolution process period comes to an end
 - Till the date of continuation of the prepackaged insolvency resolution process period
 - Till the date the Authority directs the professional from the prepackaged insolvency resolution process commencement date
 - Either a or b or c or d
112. During the pre-packaged insolvency resolution process period the management of the affairs of the corporate debtor shall _____ under the IBC
- Shall vest in the resolution professional
 - Shall vest in the financial creditors
 - Shall vest in the insolvency professional
 - Shall continue to vest in the Board of Directors or the partners, as the case may be, of the corporate debtor
 - Either a or c
113. According to the IBC provisions the resolution professional shall, within seven days of the pre-packaged insolvency commencement date, constitute a committee of creditors, based on the _____
- List of claims
 - List of claims confirmed
 - Directions given by the corporate debtor
 - Directions given by the Adjudicating Authority
 - On the directions of the corporate debtor on the approval of the Authority
114. As per section 54I of the IBC the first meeting of the committee of creditors shall be held within _____
- Seven days of the constitution of the committee of creditors
 - Seven days of the initiation of the pre-packaged insolvency
 - Seven days of the admission of the application by the Authority

- d. Seven days of the submission of the application by the applicant
 - e. None of the above
115. Under the IBC the corporate debtor shall submit the base resolution plan to the resolution professional within _____ of the pre-packaged insolvency commencement date, and the resolution professional shall present it to the committee of creditors
- a. Two days
 - b. Three days
 - c. Thirty days
 - d. Forty days
 - e. Sixty days
116. As per the IBC the committee of creditors may approve the base resolution plan for submission to the Adjudicating Authority if _____
- a. It does not impair any claims owed by the corporate debtor to the creditors
 - b. It does not impair any claims owed by the corporate debtor to the operational creditors
 - c. It does not impair any claims owed by the corporate debtor to the financial creditors
 - d. Either a or b or c
 - e. Either b or c
117. When shall the resolution professional shall invite prospective resolution applicants to submit a resolution plan or plans, to compete with the base resolution plan as per the IBC?
- a. Where the committee of creditors approve the base resolution plan
 - b. Where the committee of creditors does not approve the base resolution plan
 - c. Where the base resolution plan impairs any claims owed by the corporate debtor to the operational creditors
 - d. Where the committee of creditors so directs the resolution professional
 - e. Where the base resolution plan is not submitted on time
118. As laid down under the IBC approval of the resolution plan, for the pre-packaged insolvency, by the committee of creditors, shall be by a vote of _____ of the voting shares, after considering its feasibility and viability, the manner of distribution proposed, taking into account the order of priority amongst creditors
- a. Less than sixty per cent
 - b. Less than sixty-six per cent
 - c. Not less than sixty-six per cent
 - d. Not less than seventy-six per cent
 - e. Not less than sixty-five per cent

119. What is the time period prescribed under the IBC for the approval of the resolution plan by the Adjudicating Authority for undertaking pre-packaged insolvency process?
- Within fourteen days of the receipt of such resolution plan
 - Within thirty days of the receipt of such resolution plan
 - Within sixty days of the receipt of such resolution plan
 - Within such time period as may be prescribed
 - At the discretion of the Board
120. As per the IBC an application for the fast-track corporate insolvency resolution process may be made in respect of the corporate debtor _____
- With assets and income below a level as may be notified by the Central Government
 - With such class of creditors or such amount of debt as may be notified by the Central Government
 - With such other category of corporate persons as may be notified by the Central Government
 - Either a or b or c
 - Either a or b
121. As per IBC the fast-track corporate insolvency resolution process shall be completed within a period of _____
- Ninety days
 - Ninety days from the insolvency commencement date
 - One hundred and twenty days from the insolvency commencement date
 - Ninety days from the date of admission of application by the Authority
 - Two hundred and seventy days from the insolvency commencement date
122. IBC provides that the resolution professional shall file an application to the Adjudicating Authority to extend the period of the fast-track corporate insolvency resolution process beyond ninety days if instructed to do so by a resolution passed at a meeting of the committee of creditors and supported by a vote of _____ of the voting share
- Sixty five percent
 - Sixty-six percent
 - Seventy six percent
 - Seventy five percent
 - Seventy percent
123. What is the extension period which the Adjudicating Authority may provide if an application is made to it and if the Authority is satisfied that the subject matter of the case is such that fast track corporate insolvency resolution process cannot be completed within the specified period as provided under the IBC?
- Forty-five days
 - Exceeding forty-five days

- c. Not exceeding forty-five days
 - d. Not exceeding ninety days
 - e. No such extension is applicable in the case of fast-track corporate insolvency resolution process
124. _____ who intends to liquidate itself voluntarily and has not committed any default may initiate voluntary liquidation proceedings under the IBC
- a. Corporate debtor
 - b. Corporate applicant
 - c. Corporate person
 - d. Creditors
 - e. Financial creditor
125. What is the time period under the IBC within which the company shall notify the Registrar of Companies and the Board about the resolution for the voluntary liquidation of the corporate person?
- a. Sixty days
 - b. Seven days
 - c. Thirty days
 - d. Fourteen days
 - e. Within such time period as the Central Government may specify
126. As per the IBC where the affairs of the corporate person have been completely wound up, and its assets completely liquidated, the liquidator shall make an application to the Adjudicating Authority for the _____
- a. Liquidation of corporate person
 - b. Dissolution of corporate person
 - c. Insolvency of corporate person
 - d. Either a or b or c
 - e. Either a or b
127. As defined under the IBC a creditor means _____
- a. Any person to whom a debt is owed
 - b. Any person to whom a debt is owed and includes a financial creditor
 - c. Any person to whom a debt is owed and includes a person to whom such debt has been legally assigned or transferred to
 - d. Any person to whom a debt is owed and includes a financial creditor, an operational creditor, a secured creditor, an unsecured creditor and a decree holder
 - e. None of the above
128. Under the IBC if an officer of the corporate debtor or the corporate debtor has made or caused to be made any gift or transfer of, or charge on, or has caused or connived in the execution of a decree or order against, the property of the corporate debtor they shall be punishable with _____

- a. Imprisonment for a term which shall not be less than one year, but which may extend to five years
 - b. Imprisonment for a term which shall not be less than one year, but which may extend to five years, or with fine
 - c. Imprisonment for a term which shall not be less than one year, but which may extend to five years, or with fine, which shall not be less than one lakh rupees, but may extend to one crore rupees
 - d. Imprisonment for a term which shall not be less than one year, but which may extend to five years, or with fine, which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both
 - e. Imprisonment for a term which shall not be less than one year, but which may extend to three years, or with fine, which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both
129. Where any officer of the corporate debtor on or after the insolvency commencement date, makes a false representation or commits any fraud for the purpose of obtaining the consent of the creditors of the corporate debtor or any of them to an agreement with reference to the affairs of the corporate debtor, during the corporate insolvency resolution process, or the liquidation process he shall be punishable with _____ under the IBC
- a. Imprisonment for a term which shall not be less than three years, but may extend to five years or with fine which shall not be less than one lakh rupees, but may extend to one crore rupees
 - b. Imprisonment for a term which shall not be less than one year, but which may extend to five years, or with fine, which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both
 - c. Imprisonment for a term which shall not be less than one year, but which may extend to five years, or with fine, which shall not be less than one lakh rupees, but may extend to one crore rupees
 - d. Imprisonment for a term which shall not be less than three years, but may extend to five years or with fine which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both
 - e. None of the above
130. The IBC is applicable to _____
- a. Banks
 - b. Limited Liability Partnerships
 - c. Personal guarantors to corporate debtors
 - d. All the above
 - e. Both (b) & (c)

ANSWER KEYS

1. Ans. b. 28 May 2016,
The Insolvency and Bankruptcy Code, 2016 was introduced in the Lok Sabha on 21 December 2015 by former Finance Minister, Late Arun Jaitley. The Code was referred to a Joint Committee of Parliament on 23 December 2015, and recommended by the Committee on 28 April 2016. The Code was passed by the Lok Sabha and the Rajya Sabha on 5 May and 11 May 2016 respectively. Subsequently, it received assent from President Pranab Mukherjee and was notified in the Gazette of India on 28 May 2016.
2. Ans. e. Recovery of loans by creditors,
The objective behind Insolvency and Bankruptcy Code, 2016 is to create a more effective and time-bound insolvency resolution process. It aims to address several key issues in the previous bankruptcy and insolvency framework such as:
 - It consolidates and amends various existing laws related to insolvency and bankruptcy, providing a unified and comprehensive legal framework for resolution and liquidation.
 - To provide a time-bound resolution process for distressed companies, preventing the undue delay in insolvency proceedings
 - To maximize the value of assets of insolvent companies and ensure that creditors, including operational creditors, receive a fair and equitable share of the proceeds.
 - To preserve the viable parts of a business while dealing with non-viable parts in an orderly manner. The emphasis is on keeping the business as a going concern as far as possible.
 - To balance the interests of all stakeholders, including creditors, debtors, and shareholders, by providing a structured process for insolvency resolution.
 - To encourage entrepreneurship and minimize the stigma associated with business failure.
3. Ans. e. Corporate person who owes a debt to any person,
IBC Section 3(8) "corporate debtor" means a corporate person who owes a debt to any person.
4. Ans. e. Financial Creditor, Operational Creditor and Corporate Applicant,
Section 6-Persons who may initiate corporate insolvency resolution process: Where any corporate debtor commits a default, a financial creditor, an operational creditor, or the corporate debtor itself may initiate corporate insolvency resolution process in respect of such corporate debtor.
5. Ans. d. Any person to whom a financial debt is owed and includes a person to whom such debt has been legally assigned or transferred to,

IBC Section 5 (7) “financial creditor” means any person to whom a financial debt is owed and includes a person to whom such debt has been legally assigned or transferred to.

6. Ans. c. Insolvency and Bankruptcy Board of India,
The Insolvency and Bankruptcy Board of India is the regulatory and supervisory body established under the Insolvency and Bankruptcy Code of 2016. Its primary role is to oversee and regulate the insolvency resolution processes, bankruptcy proceedings, and other matters related to the insolvency and bankruptcy framework in India. It sets out regulations, guidelines, and standards for insolvency professionals, insolvency professional agencies, information utilities, and other participants in the insolvency and bankruptcy ecosystem. It also maintains a database of various aspects of corporate insolvency and individual bankruptcy cases. The IBBI contributes to the overall transparency, efficiency, and effectiveness of the insolvency and bankruptcy processes in India.
7. Ans. c. 180 days from the date of admission of the application to initiate such process,
As per section 12(1) of IBC, the CIRP shall be completed within a period of 180 days from the date of admission of the application to initiate such process. The Adjudicating Authority may grant a one-time extension of 90 days. The maximum time within which CIRP has to be mandatorily completed, including any extension or litigation period, is 330 days. Any extension of the period of corporate insolvency resolution process under this section shall not be granted more than once.
8. Ans. d. Till the date of appointment of the resolution professional,
Section 16(5) - The term of the interim resolution professional shall continue till the date of appointment of the resolution professional under section 22.
9. Ans. d. Interim Resolution Professional,
Section 17(1)(a) From the date of appointment of the interim resolution professional— (a) the management of the affairs of the corporate debtor shall vest in the interim resolution professional.
10. Ans. e. All the financial creditors of the corporate debtor,
Section 21(2) The committee of creditors shall comprise all financial creditors of the corporate debtor.
11. Ans. c. Financial Creditor,
Section 7(1) A financial creditor either by itself or jointly with other financial creditors, or any other person on behalf of the financial creditor, as may be notified by the Central Government, may file an application for initiating corporate insolvency resolution process against a corporate debtor before the Adjudicating Authority when a default has occurred.
12. Ans. d. The Transfer of Property Act, 1882,
Following 11 acts were amended by the Insolvency and Bankruptcy Code, 2016: -

- I. The First Schedule amends the Indian Partnership Act, 1932.
- II. The Second Schedule amends the Central Excise Act, 1944.
- III. The Third Schedule amends the Income-tax Act, 1961.
- IV. The Fourth Schedule amends the Customs Act, 1962.
- V. The Fifth Schedule amends the Recovery of Debts due to Banks and Financial Institutions Act, 1993.
- VI. The Sixth Schedule amends the Finance Act, 1994.
- VII. The Seventh Schedule amends the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002.
- VIII. The Eighth Schedule amends the Sick Industrial Companies (Special Provisions) Repeal Act, 2003.
- IX. The Ninth Schedule amends the Payment and Settlement Systems Act, 2007.
- X. The Tenth Schedule amends the Limited Liability Partnership Act, 2008.
- XI. The Eleventh Schedule amends the Companies Act, 2013.

13. Ans. d. Adjudicating Authority,

Section 34 (1) - Where the Adjudicating Authority passes an order for liquidation of the corporate debtor, the resolution professional appointed for the corporate insolvency resolution process under Chapter II shall, subject to submission of a written consent by the resolution professional to the Adjudicating Authority in specified form act as the liquidator for the purposes of liquidation unless replaced by the Adjudicating Authority.

14. Ans. d. 90 days,

Section 56 (1) the fast-track corporate insolvency resolution process shall be completed within a period of ninety days from the insolvency commencement date.

15. Ans. b. Liquidation estate,

Section 34(9) - The fees for the conduct of the liquidation proceedings shall be paid to the liquidator from the proceeds of the liquidation estate under section 53.

16. Ans. e. Completion of the corporate insolvency resolution process,

Section 14(4) The order of moratorium shall have effect from the date of such order till the completion of the corporate insolvency resolution process: Provided that where at any time during the corporate insolvency resolution process period, if the Adjudicating Authority approves the resolution plan under sub-section (1) of section 31 or passes an order for liquidation of corporate debtor under section 33, the moratorium shall cease to have effect from the date of such approval or liquidation order, as the case may be.

17. Ans. c. 45 days,

Section 56 - On receipt of an application, if the Adjudicating Authority is satisfied that the subject matter of the case is such that fast track corporate insolvency resolution process cannot be completed within a period of ninety days, it may, by order, extend the duration of such process beyond the said period of ninety days by such further period, as it thinks fit, but not exceeding forty-five days.

18. Ans. b. Adjudicating Authority,

Section 24 - (3) The resolution professional shall give notice of each meeting of the committee of creditors to—members of Committee of creditors, including the authorised representatives referred to in sub-sections (6) and (6A) of section 21 and sub-section (5); (b) members of the suspended Board of Directors or the partners of the corporate persons, as the case may be; (c) operational creditors or their representatives if the amount of their aggregate dues is not less than ten per cent. of the debt.

19. Ans. d. By a vote of 66% of voting shares,

Section 27 (2) - (2) The committee of creditors may, at a meeting, by a vote of sixty-six% of voting shares, resolve to replace the resolution professional, subject to a written consent from the proposed resolution professional in the specified form.

20. Ans. d. Bankruptcy Law Reforms Committee,

On 22nd August 2014, the Ministry of Finance created a committee called the Bankruptcy Legislative Reforms Commission (BLRC), headed by T. K. Viswanathan (Former Union Law Secretary and Secretary General Lok Sabha). The law drafted by the BLRC is a consolidated bankruptcy framework, covering both individuals as well as legal entities, and aims to be a holistic reform of the insolvency resolution process for all entrepreneurs in India. The reforms aim to improve the time taken to resolving insolvency and improve loss given default on repayment on credit. In turn, this can lead to a significant improvement of the ease and cost of doing business in India and is expected to develop the credit and the debt securities markets.

21. Ans. e. From the date of declaration of moratorium order by the Adjudicating Authority till the completion of the corporate insolvency resolution process,

Section 14(4) The order of moratorium shall have effect from the date of such order declaration of moratorium order) till the completion of the corporate insolvency resolution process: Provided that where at any time during the corporate insolvency resolution process period, if the Adjudicating Authority approves the resolution plan under sub-section (1) of section 31 or passes an order for liquidation of corporate debtor under section 33, the moratorium shall cease to have effect from the date of such approval or liquidation order, as the case may be.

22. Ans. d. Supreme Court,

Section 62 (1) Any person aggrieved by an order of the National Company Law Appellate Tribunal may file an appeal to the Supreme Court on a question of law arising out of such order under this Code within forty-five days from the date of receipt of such order.

23. Ans. a. 7 days,

Section 40(2) - The liquidator shall communicate his decision of admission or rejection of claims to the creditor and corporate debtor within seven days of such admission or rejection of claims.

24. Ans. e. If the liquidator or resolution professional has not reported the transaction, Section 47 (1) Where an undervalued transaction has taken place and the liquidator or the resolution professional as the case may be, has not reported it to the Adjudicating Authority, a creditor, member or a partner of a corporate debtor, as the case may be, may make an application to the Adjudicating Authority to declare such transactions void and reverse their effect in accordance with this Chapter.
25. Ans. a. Liquidator,
Section 36(2) The liquidator shall hold the liquidation estate as a fiduciary for the benefit of all the creditors.
26. Ans. c. The creditor can appeal to the National Company Law Tribunal,
Section 42 A creditor may appeal to the Adjudicating Authority against the decision of the liquidator accepting or rejecting the claims within fourteen days of the receipt of such decision.
27. Ans. e. All b, c & d
Section 2-Application- The provisions of this Code shall apply to— (a) any company incorporated under the Companies Act, 2013 or under any previous company law; (b) any other company governed by any special Act for the time being in force, except in so far as the said provisions are inconsistent with the provisions of such special Act; (c) any Limited Liability Partnership incorporated under the Limited Liability Partnership Act, 2008; (d) such other body incorporated under any law for the time being in force, as the Central Government may, by notification, specify in this behalf; (e) Personal guarantors to corporate debtors; (f) partnership firms or proprietorship firms; and (g) individuals, other than persons referred to in clause (e), in relation to their insolvency, liquidation, voluntary liquidation or bankruptcy, as the case may be.
28. Ans. c. 330 days,
Section 12-Time-limit for completion of insolvency resolution process- the corporate insolvency resolution process shall mandatorily be completed within a period of three hundred and thirty days from the insolvency commencement date, including any extension of the period of corporate insolvency resolution process granted under this section and the time taken in legal proceedings in relation to such resolution process of the corporate debtor.
29. Ans. c. Minimum amount of the default is one crore rupees,
Section 4-Application of this Part- (1) This Part shall apply to matters relating to the insolvency and liquidation of corporate debtors where the minimum amount of the default is one lakh rupees: Provided that the Central Government may, by notification, specify the minimum amount of default of higher value which shall not be more than one crore rupees- Notification- In exercise of the powers conferred by the proviso to section 4 of the IB Code,

2016, the Central Government hereby specifies one crore rupees as the minimum amount of default for the purposes of the said section.

30. Ans. d. All the above,

Section 14-Moratorium- (1) Subject to provisions of sub-sections (2) and (3), on the insolvency commencement date, the Adjudicating Authority shall by order declare moratorium for prohibiting all of the following, namely:— (a) the institution of suits or continuation of pending suits or proceedings against the corporate debtor including execution of any judgment, decree or order in any court of law, tribunal, arbitration panel or other authority; (b) transferring, encumbering, alienating or disposing of by the corporate debtor any of its assets or any legal right or beneficial interest therein; (c) any action to foreclose, recover or enforce any security interest created by the corporate debtor in respect of its property including any action under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002; (d) the recovery of any property by an owner or lessor where such property is occupied by or in the possession of the corporate debtor

31. Ans. d. Date of admission of an application for initiating CIRP by the Adjudicating Authority, Section 5 Definitions- (12) “insolvency commencement date” means the date of admission of an application for initiating corporate insolvency resolution process by the Adjudicating Authority under sections 7, 9 or section 10, as the case may be.

32. Ans. d. Both (a) & (b),

Section 3-Definitions- (19) “insolvency professional” means a person enrolled under section 206 with an insolvency professional agency as its member and registered with the Board as an insolvency professional under section 207.

33. Ans. b. One hundred and twenty days,

Section 54D-Time-limit for completion of pre-packaged insolvency resolution process- 54D. (1) The pre-packaged insolvency resolution process shall be completed within a period of one hundred and twenty days from the pre-packaged insolvency commencement date.

34. Ans. d. Corporate Applicant,

Section 54C-Application to initiate pre-packaged insolvency resolution process- (1) Where a corporate debtor meets the requirements of section 54A, a corporate applicant thereof may file an application with the Adjudicating Authority for initiating pre-packaged insolvency resolution process.

35. Ans. Both (a) & (c),

Section 33-Initiation of liquidation- (1) Where the Adjudicating Authority— (a) before the expiry of the insolvency resolution process period or the maximum period permitted for completion of the corporate insolvency resolution process under section 12 or the fast

track corporate insolvency resolution process under section 56, as the case may be, does not receive a resolution plan under sub-section (6) of section 30; or (b) rejects the resolution plan under section 31 for the non-compliance of the requirements specified therein, it shall—(i) pass an order requiring the corporate debtor to be liquidated in the manner as laid down in this Chapter; (ii) issue a public announcement stating that the corporate debtor is in liquidation; and (iii) require such order to be sent to the authority with which the corporate debtor is registered.

36. Ans. b. Ten lakh rupees,

Section 4-Application of this Part- Provided further that the Central Government may, by notification, specify such minimum amount of default of higher value, which shall not be more than one crore rupees, for matters relating to the pre-packaged insolvency resolution process of corporate debtors under Chapter III-A- he Central Government specified ten lakh rupees as the minimum amount of default for the matters relating to the pre-packaged insolvency resolution process of corporate debtor.

37. Ans. e. All a b c & d

Section 36-Liquidation estate- (4) The following shall not be included in the liquidation estate assets and shall not be used for recovery in the liquidation: — (a) assets owned by a third party which are in possession of the corporate debtor, including— (i) assets held in trust for any third party; (ii) bailment contracts; (iii) all sums due to any workman or employee from the provident fund, the pension fund and the gratuity fund; (iv) other contractual arrangements which do not stipulate transfer of title but only use of the assets; and (v) such other assets as may be notified by the Central Government in consultation with any financial sector regulator; (b) assets in security collateral held by financial services providers and are subject to netting and set-off in multi-lateral trading or clearing transactions; (c) personal assets of any shareholder or partner of a corporate debtor as the case may be provided such assets are not held on account of avoidance transactions that may be avoided under this Chapter; (d) assets of any Indian or foreign subsidiary of the corporate debtor; or (e) any other assets as may be specified by the Board, including assets which could be subject to set-off on account of mutual dealings between the corporate debtor and any creditor.

38. Ans. e. Both (a) & (b),

Section 36-Liquidation estate- (1) For the purposes of liquidation, the liquidator shall form an estate of the assets mentioned in sub-section (3), which will be called the liquidation estate in relation to the corporate debtor. (2) The liquidator shall hold the liquidation estate as a fiduciary for the benefit of all the creditors.

39. Ans. i. d, e, a, b, c, Explanation: Section 53-Distribution of assets- (1) Notwithstanding anything to the contrary contained in any law enacted by the Parliament or any State Legislature for the time being in force, the proceeds from the sale of the liquidation assets shall be distributed in the following order of priority and within such period and in such

manner as may be specified, namely: — (a) the insolvency resolution process costs and the liquidation costs paid in full; (b) the following debts which shall rank equally between and among the following :— (i) workmen's dues for the period of twenty-four months preceding the liquidation commencement date; and (ii) debts owed to a secured creditor in the event such secured creditor has relinquished security in the manner set out in section 52; (c) wages and any unpaid dues owed to employees other than workmen for the period of twelve months preceding the liquidation commencement date; (d) financial debts owed to unsecured creditors; (e) the following dues shall rank equally between and among the following:—(i) any amount due to the Central Government and the State Government including the amount to be received on account of the Consolidated Fund of India and the Consolidated Fund of a State, if any, in respect of the whole or any part of the period of two years preceding the liquidation commencement date; (ii) debts owed to a secured creditor for any amount unpaid following the enforcement of security interest; (f) any remaining debts and dues; (g) preference shareholders, if any; and (h) equity shareholders or partners, as the case may be.

40. Ans. e. Either a or c,

Section 11-Persons not entitled to make application- The following persons shall not be entitled to make an application to initiate corporate insolvency resolution process under this Chapter, namely: — (a) a corporate debtor undergoing a corporate insolvency resolution process or a pre-packaged insolvency resolution process; or (aa) a financial creditor or an operational creditor of a corporate debtor undergoing a pre-packaged insolvency resolution process; or (b) a corporate debtor having completed corporate insolvency resolution process twelve months preceding the date of making of the application; or (ba) a corporate debtor in respect of whom a resolution plan has been approved under Chapter III-A, twelve months preceding the date of making of the application; or (c) a corporate debtor or a financial creditor who has violated any of the terms of resolution plan which was approved twelve months before the date of making of an application under this Chapter; or (d) a corporate debtor in respect of whom a liquidation order has been made.

41. Ans. d. Either a or b,

Section 22-Appointment of resolution professional- (2) The committee of creditors, may, in the first meeting, by a majority vote of not less than sixty-six per cent of the voting share of the financial creditors, either resolve to appoint the interim resolution professional as a resolution professional or to replace the interim resolution professional by another resolution professional.

42. Ans. b. Within seven days of constitution of CoC,

Section 22-Appointment of resolution professional- (1) The first meeting of the committee of creditors shall be held within seven days of the constitution of the committee of creditors.

43. Ans. e. Either (b) or (c),

Section 43-Preferential transactions and relevant time- (4) A preference shall be deemed to be given at a relevant time, if— (a) it is given to a related party (other than by reason only of being an employee), during the period of two years preceding the insolvency commencement date; or (b) a preference is given to a person other than a related party during the period of one year preceding the insolvency commencement date.

44. Ans. c. Ninety days from the insolvency commencement date,

Section 56-Time period for completion of fast-track corporate insolvency resolution process- (1) Subject to the provisions of sub-section (3), the fast-track corporate insolvency resolution process shall be completed within a period of ninety days from the insolvency commencement date.

45. Ans. e. 75% of the voting shares,

Section 56-Time period for completion of fast-track corporate insolvency resolution process- (2) The resolution professional shall file an application to the Adjudicating Authority to extend the period of the fast-track corporate insolvency resolution process beyond ninety days if instructed to do so by a resolution passed at a meeting of the committee of creditors and supported by a vote of seventy five percent of the voting share.

46. Ans. b. Forty-five days,

Section 56-Time period for completion of fast track corporate insolvency resolution process- (3) On receipt of an application under sub-section (2), if the Adjudicating Authority is satisfied that the subject matter of the case is such that fast track corporate insolvency resolution process cannot be completed within a period of ninety days, it may, by order, extend the duration of such process beyond the said period of ninety days by such further period, as it thinks fit, but not exceeding forty-five days: Provided that any extension of the fast track corporate insolvency resolution process under this section shall not be granted more than once.

47. Ans. e. All a b c & d,

Section 59-Voluntary liquidation of corporate persons- (3) Without prejudice to sub-section (2), voluntary liquidation proceedings of a corporate person registered as a company shall meet the following conditions, namely:— (a) a declaration from majority of the directors of the company verified by an affidavit stating that— (i) they have made a full inquiry into the affairs of the company and they have formed an opinion that either the company has no debt or that it will be able to pay its debts in full from the proceeds of assets to be sold in the voluntary liquidation; and (ii) the company is not being liquidated to defraud any person; (b) the declaration under sub-clause (a) shall be accompanied with the following documents, namely: — (i) audited financial statements and record of business operations of the company for the previous two years or for the period since its incorporation, whichever is later; (ii) a report of the valuation of the assets of the company, if any prepared by a registered valuer; (c) within four weeks of a declaration under sub-clause (a), there shall be— (i) a special resolution of the members of the company in a general meeting requiring the company

to be liquidated voluntarily and appointing an insolvency professional to act as the liquidator; or (ii) a resolution of the members of the company in a general meeting requiring the company to be liquidated voluntarily as a result of expiry of the period of its duration, if any, fixed by its articles or on the occurrence of any event in respect of which the articles provide that the company shall be dissolved, as the case may be and appointing an insolvency professional to act as the liquidator: **Provided that** the company owes any debt to any person, creditors representing two thirds in value of the debt of the company shall approve the resolution passed under sub-clause (c) within seven days of such resolution.

48. Ans. c. Liquidation estate,

Section 36-Liquidation estate: (1) For the purposes of liquidation, the liquidator shall form an estate of the assets mentioned in sub-section (3), which will be called the liquidation estate in relation to the corporate debtor.

49. Ans. e. Insolvency and Bankruptcy Board of India,

Section 34-Appointment of liquidator and fee to be paid: (6) The Board shall propose the name of another insolvency professional along with written consent from the insolvency professional in the specified form within ten days of the direction issued by the Adjudicating Authority under sub-section (5).

50. Ans. e. Either a or b or c,

Section 34-Appointment of liquidator and fee to be paid: (4) The Adjudicating Authority shall by order replace the resolution professional, if— (a) the resolution plan submitted by the resolution professional under section 30 was rejected for failure to meet the requirements mentioned in sub-section (2) of section 30; or (b) the Board recommends the replacement of a resolution professional to the Adjudicating Authority for reasons to be recorded in writing in; or (c) the resolution professional fails to submit written consent under sub-section (1).

51. Ans. e. Either b or c,

Section 34-Appointment of liquidator and fee to be paid: (1) Where the Adjudicating Authority passes an order for liquidation of the corporate debtor under section 33, the resolution professional appointed for the corporate insolvency resolution process under Chapter II or for the pre-packaged insolvency resolution process under Chapter III-A shall, subject to submission of a written consent by the resolution professional to the Adjudicating Authority in specified form act as the liquidator for the purposes of liquidation unless replaced by the Adjudicating Authority under sub-section (4).

52. Ans. e Both b & c,

Section 33-Initiation of liquidation: (1) Where the Adjudicating Authority—(a) before the expiry of the insolvency resolution process period or the maximum period permitted for completion of the corporate insolvency resolution process under section 12 or the fast track corporate insolvency resolution process under section 56, as the case may be, does

not receive a resolution plan under sub-section (6) of section 30; or (b) rejects the resolution plan under section 31 for the non-compliance of the requirements specified therein, it shall— (i) pass an order requiring the corporate debtor to be liquidated in the manner as laid down in this Chapter; (ii) issue a public announcement stating that the corporate debtor is in liquidation; and (iii) require such order to be sent to the authority with which the corporate debtor is registered.

53. Ans. b. Plan proposed by resolution applicant for insolvency resolution of the corporate debtor as a going concern in accordance with Part II,
Section 5 (26) “resolution plan” means a plan proposed by resolution applicant for insolvency resolution of the corporate debtor as a going concern in accordance with Part II.
54. Ans. c. Date of admission of an application for initiating corporate insolvency resolution process by the Adjudicating Authority,
Section 5(12) “insolvency commencement date” means the date of admission of an application for initiating corporate insolvency resolution process by the Adjudicating Authority under sections 7, 9 or section 10, as the case may be.
55. Ans. b. Resolution Professional,
Section 23-Resolution professional to conduct corporate insolvency resolution process:
(1) Subject to section 27, the resolution professional shall conduct the entire corporate insolvency resolution process and manage the operations of the corporate debtor during the corporate insolvency resolution process period.
56. Ans. e. All a b & c,
Section 18-Duties of interim resolution professional: The interim resolution professional shall perform the following duties, namely:- (a) collect all information relating to the assets, finances and operations of the corporate debtor for determining the financial position of the corporate debtor, including information relating to— (i) business operations for the previous two years; (ii) financial and operational payments for the previous two years; (iii) list of assets and liabilities as on the initiation date; and (iv) such other matters as may be specified; (b) receive and collate all the claims submitted by creditors to him, pursuant to the public announcement made under sections 13 and 15; (c) constitute a committee of creditors; (d) monitor the assets of the corporate debtor and manage its operations until a resolution professional is appointed by the committee of creditors; (e) file information collected with the information utility, if necessary; and (f) take control and custody of any asset over which the corporate debtor has ownership rights as recorded in the balance sheet of the corporate debtor, or with information utility or the depository of securities or any other registry that records the ownership of assets including— (i) assets over which the corporate debtor has ownership rights which may be located in a foreign country; (ii) assets that may or may not be in possession of the corporate debtor; (iii) tangible assets, whether movable or immovable; (iv) intangible assets including intellectual property; (v) securities including shares held in any subsidiary of the corporate debtor, financial

instruments, insurance policies; (vi) assets subject to the determination of ownership by a court or authority; (g) to perform such other duties as may be specified by the Board.

57. Ans. d. Resolution Professional,

Section 30-Submission of resolution plan: (6) The resolution professional shall submit the resolution plan as approved by the committee of creditors to the Adjudicating Authority.

58. Ans. d. All a, b & c,

Section 30-Submission of resolution plan: (2) The resolution professional shall examine each resolution plan received by him to confirm that each resolution plan— (a) provides for the payment of insolvency resolution process costs in a manner specified by the Board in priority to the payment of other debts of the corporate debtor; (b) provides for the payment of debts of operational creditors in such manner as may be specified by the Board which shall not be less than— (i) the amount to be paid to such creditors in the event of a liquidation of the corporate debtor under section 53; or (ii) the amount that would have been paid to such creditors, if the amount to be distributed under the resolution plan had been distributed in accordance with the order of priority in sub-section (1) of section 53, whichever is higher, and provides for the payment of debts of financial creditors, who do not vote in favour of the resolution plan, in such manner as may be specified by the Board, which shall not be less than the amount to be paid to such creditors in accordance with sub-section (1) of section 53 in the event of a liquidation of the corporate debtor. (c) provides for the management of the affairs of the Corporate debtor after approval of the resolution plan; (d) the implementation and supervision of the resolution plan; (e) does not contravene any of the provisions of the law for the time being in force; (f) conforms to such other requirements as may be specified by the Board.

59. Ans. ii. D, C, A, B,

Section 27-Replacement of resolution professional by committee of creditors: (2) The committee of creditors may, at a meeting, by a vote of sixty-six per cent. of voting shares, resolve to replace the resolution professional, subject to a written consent from the proposed resolution professional in the specified form. (3) The committee of creditors shall forward the name of the insolvency professional proposed by them to the Adjudicating Authority. (4) The Adjudicating Authority shall forward the name of the proposed resolution professional to the Board for its confirmation and a resolution professional shall be appointed in the same manner as laid down in section 16. (5) Where any disciplinary proceedings are pending against the proposed resolution professional under sub-section (3), the resolution professional appointed under section 22 shall continue till the appointment of another resolution professional under this section.

60. Ans. d. Both a & b,

Section 22-Appointment of resolution professional: (3) Where the committee of creditors resolves under sub-section (2)— (a) to continue the interim resolution professional as resolution professional subject to a written consent from the interim resolution professional in the specified form, it shall communicate its decision to the interim resolution

professional, the corporate debtor and the Adjudicating Authority; or (b) to replace the interim resolution professional, it shall file an application before the Adjudicating Authority for the appointment of the proposed resolution professional along with a written consent from the proposed resolution professional in the specified form.

61. Ans. d. All a, b & c, Explanation: Section 22-Appointment of resolution professional: (3) Where the committee of creditors resolves under sub-section (2)— (a) to continue the interim resolution professional as resolution professional subject to a written consent from the interim resolution professional in the specified form , it shall communicate its decision to the interim resolution professional, the corporate debtor and the Adjudicating Authority; or (b) to replace the interim resolution professional, it shall file an application before the Adjudicating Authority for the appointment of the proposed resolution professional along with a written consent from the proposed resolution professional in the specified form.
62. Ans. e. Either a or b,
Section 22-Appointment of resolution professional: (2) The committee of creditors, may, in the first meeting, by a majority vote of not less than sixty-six per cent of the voting share of the financial creditors, either resolve to appoint the interim resolution professional as a resolution professional or to replace the interim resolution professional by another resolution professional.
63. Ans. b. Constitution of the committee of creditors,
Section 22-Appointment of resolution professional: (1) The first meeting of the committee of creditors shall be held within seven days of the constitution of the committee of creditors.
64. Ans. a. True,
Section 24-Meeting of committee of creditors: (4) The directors, partners and one representative of operational creditors, as referred to in sub-section (3), may attend the meetings of committee of creditors, but shall not have any right to vote in such meetings: Provided that the absence of any such director, partner or representative of operational creditors, as the case may be, shall not invalidate proceedings of such meeting.
65. Ans. d. All a, b & c,
Section 24-Meeting of committee of creditors: (3) The resolution professional shall give notice of each meeting of the committee of creditors to— (a) members of committee of creditors, including the authorized representatives referred to in sub-sections (6) and (6A) of section 21 and sub-section (5); (b) members of the suspended Board of Directors or the partners of the corporate persons, as the case may be; (c) operational creditors or their representatives if the amount of their aggregate dues is not less than ten per cent of the debt.
66. Ans. e. Either a or c,

Section 24-Meeting of committee of creditors: (1) The members of the committee of creditors may meet in person or by such electronic means as may be specified.

67. Ans. b. Be a financial creditor to the extent of the financial debt owed by the corporate debtor and be included in the committee of creditors,

Section 21-Committee of creditors: (4) Where any person is a financial creditor as well as an operational creditor— (a) such person shall be a financial creditor to the extent of the financial debt owed by the corporate debtor and shall be included in the committee of creditors, with voting share proportionate to the extent of financial debts owed to such creditor; (b) such person shall be considered to be an operational creditor to the extent of the operational debt owed by the corporate debtor to such creditor.

68. Ans. a. Within a period of seven days of such requisition,

Section 21-Committee of creditors: (10) The resolution professional shall make available any financial information so required by the committee of creditors under sub-section (9) within a period of seven days of such requisition.

69. Ans. c. Financial creditors,

Section 21-Committee of creditors: (2) The committee of creditors shall comprise all financial creditors of the corporate debtor: Provided that a financial creditor or the authorized representative of the financial creditor referred to in sub-section (6) or sub-section (6A) or sub-section (5) of section 24, if it is a related party of the corporate debtor, shall not have any right of representation, participation or voting in a meeting of the committee of creditors.

70. Ans. c. Interim resolution professional,

Section 21-Committee of creditors: (1) The interim resolution professional shall after collation of all claims received against the corporate debtor and determination of the financial position of the corporate debtor, constitute a committee of creditors.

71. Ans. b. Within ten days,

Section 16-Appointment and tenure of interim resolution professional: (4) The Board shall, within ten days of the receipt of a reference from the Adjudicating Authority under sub-section (3), recommend the name of an insolvency professional.

72. Ans. d. An insolvency professional appointed to conduct the corporate insolvency resolution process or the prepackaged insolvency resolution process, as the case may be, and includes an interim resolution professional,

Section 5(27) “resolution professional”, for the purposes of this Part, means an insolvency professional appointed to conduct the corporate insolvency resolution process or the prepackaged insolvency resolution process, as the case may be, and includes an interim resolution professional.

73. Ans. c. The Adjudicating Authority shall make a reference to the Board for the recommendation of an insolvency professional who may act as an interim resolution professional,

Section 16-Appointment and tenure of interim resolution professional: (3) Where the application for corporate insolvency resolution process is made by an operational creditor and— (a) no proposal for an interim resolution professional is made, the Adjudicating Authority shall make a reference to the Board for the recommendation of an insolvency professional who may act as an interim resolution professional; (b) a proposal for an interim resolution professional is made under sub-section (4) of section 9, the resolution professional as proposed, shall be appointed as the interim resolution professional, if no disciplinary proceedings are pending against him.

74. Ans b. Adjudicating Authority,

Section 16-Appointment and tenure of interim resolution professional: (1) The Adjudicating Authority shall appoint an interim resolution professional on the insolvency commencement date.

75. Ans. d. All a, b & c,

Section 15-Public announcement of corporate insolvency resolution process: (1) The public announcement of the corporate insolvency resolution process under the order referred to in section 13 shall contain the following information, namely:— (a) name and address of the corporate debtor under the corporate insolvency resolution process; (b) name of the authority with which the corporate debtor is incorporated or registered; (c) the last date for submission of claims, as may be specified; (d) details of the interim resolution professional who shall be vested with the management of the corporate debtor and be responsible for receiving claims; (e) penalties for false or misleading claims; and (f) the date on which the corporate insolvency resolution process shall close, which shall be the one hundred and eightieth day from the date of the admission of the application under sections 7, 9 or section 10, as the case may be.

76. Ans. e. All a b & c,

Section 13-Declaration of moratorium and public announcement: (1) The Adjudicating Authority, after admission of the application under section 7 or section 9 or section 10, shall, by an order— (a) declare a moratorium for the purposes referred to in section 14; (b) cause a public announcement of the initiation of corporate insolvency resolution process and call for the submission of claims under section 15; and (c) appoint an interim resolution professional in the manner as laid down in section 16.

77. Ans. d. Immediately after the appointment of the interim resolution professional,

Section 13-Declaration of moratorium and public announcement: (2) The public announcement shall be made immediately after the appointment of the interim resolution professional.

78. Ans. a. Moratorium Period,

Section 14-Moratorium: (2) The supply of essential goods or services to the corporate debtor as may be specified shall not be terminated or suspended or interrupted during moratorium period.

79. Ans. b. Adjudicating Authority,

Section 12-Time-limit for completion of insolvency resolution process: Section 12A. Withdrawal of application admitted under section 7, 9 or 10: The Adjudicating Authority may allow the withdrawal of application admitted under section 7 or section 9 or section 10, on an application made by the applicant with the approval of ninety per cent voting share of the committee of creditors, in such manner as may be prescribed.

80. Ans. c. Thirty days,

Section 38-Consolidation of claims: (1) The liquidator shall receive or collect the claims of creditors within a period of thirty days from the date of the commencement of the liquidation process.

81. Ans. a. Fourteen days,

Section 38-Consolidation of claims: (5) A creditor may withdraw or vary his claim under this section within fourteen days of its submission.

82. Ans. c. Either admit or reject the claim,

Section 40-Admission or rejection of claims: (1) The liquidator may, after verification of claims under section 39, either admit or reject the claim, in whole or in part, as the case may be: Provided that where the liquidator rejects a claim, he shall record in writing the reasons for such rejection.

83. Ans. a. Seven days,

Section 40-Admission or rejection of claims: (2) The liquidator shall communicate his decision of admission or rejection of claims to the creditor and corporate debtor within seven days of such admission or rejection of claims.

84. Ans. c. Adjudicating Authority,

Section 42-Appeal against the decision of liquidator: A creditor may appeal to the Adjudicating Authority against the decision of the liquidator accepting or rejecting the claims within fourteen days of the receipt of such decision.

85. Ans. b. Seven days from the date of order,

Section 54-Dissolution of corporate debtor: (3) A copy of an order under sub-section (2) shall within seven days from the date of such order, be forwarded to the authority with which the corporate debtor is registered.

86. Ans. e. Both a & c,

Section 43-Preferential transactions and relevant time: (2) A corporate debtor shall be deemed to have given a preference, if— (a) there is a transfer of property or an interest

thereof of the corporate debtor for the benefit of a creditor or a surety or a guarantor for or on account of an antecedent financial debt or operational debt or other liabilities owed by the corporate debtor; and (b) the transfer under clause (a) has the effect of putting such creditor or a surety or a guarantor in a beneficial position than it would have been in the event of a distribution of assets being made in accordance with section 53.

87. Ans. c. Two years preceding the insolvency commencement date,
Section 43-Preferential transactions and relevant time: (4) A preference shall be deemed to be given at a relevant time, if— (a) it is given to a related party (other than by reason only of being an employee), during the period of two years preceding the insolvency commencement date; or (b) a preference is given to a person other than a related party during the period of one year preceding the insolvency commencement date.
88. Ans. d. Both a & b,
Section 43 (3) For the purposes of sub-section (2), a preference shall not include the following transfers—(a) transfer made in the ordinary course of the business or financial affairs of the corporate debtor or the transferee; (b) any transfer creating a security interest in property acquired by the corporate debtor to the extent that— (i) such security interest secures new value and was given at the time of or after the signing of a security agreement that contains a description of such property as security interest and was used by corporate debtor to acquire such property; and (ii) such transfer was registered with an information utility on or before thirty days after the corporate debtor receives possession of such property: Provided that any transfer made in pursuance of the order of a court shall not, preclude such transfer to be deemed as giving of preference by the corporate debtor.
89. Ans. a. One year preceding the insolvency commencement date,
Section 43-Preferential transactions and relevant time: (4) A preference shall be deemed to be given at a relevant time, if— (a) it is given to a related party (other than by reason only of being an employee), during the period of two years preceding the insolvency commencement date; or (b) a preference is given to a person other than a related party during the period of one year preceding the insolvency commencement date.
90. Ans. d. Either a or b,
Section 45-Avoidance of undervalued transactions: (2) A transaction shall be considered undervalued where the corporate debtor— (a) makes a gift to a person; or (b) enters into a transaction with a person which involves the transfer of one or more assets by the corporate debtor for a consideration the value of which is significantly less than the value of the consideration provided by the corporate debtor, and such transaction has not taken place in the ordinary course of business of the corporate debtor.
91. Ans. d. Both a & b,
Section 46-Relevant period for avoidable transactions: (1) In an application for avoiding a transaction at undervalue, the liquidator or the resolution professional, as the case may be, shall demonstrate that— (i) such transaction was made with any person within the

period of one year preceding the insolvency commencement date; or (ii) such transaction was made with a related party within the period of two years preceding the insolvency commencement date.

92. Ans. e. Either a or c,

Section 50-Extortionate credit transactions: (1) Where the corporate debtor has been a party to an extortionate credit transaction involving the receipt of financial or operational debt during the period within two years preceding the insolvency commencement date, the liquidator or the resolution professional as the case may be, may make an application for avoidance of such transaction to the Adjudicating Authority if the terms of such transaction required exorbitant payments to be made by the corporate debtor.

93. Ans. c. National Company Law Tribunal,

Section 60-Adjudicating Authority for corporate persons: (1) The Adjudicating Authority, in relation to insolvency resolution and liquidation for corporate persons including corporate debtors and personal guarantors thereof shall be the National Company Law Tribunal having territorial jurisdiction over the place where the registered office of the corporate person is located.

94. Ans. e. National Company Law Appellate Tribunal,

Section 61-Appeals and Appellate Authority: (1) Notwithstanding anything to the contrary contained under the Companies Act 2013, any person aggrieved by the order of the Adjudicating Authority under this part may prefer an appeal to the National Company Law Appellate Tribunal.

95. Ans. b. Thirty days,

Section 61-Appeals and Appellate Authority: (2) Every appeal under sub-section (1) shall be filed within thirty days before the National Company Law Appellate Tribunal: Provided that the National Company Law Appellate Tribunal may allow an appeal to be filed after the expiry of the said period of thirty days if it is satisfied that there was sufficient cause for not filing the appeal but such period shall not exceed fifteen days.

96. Ans. a. Adjudicating Authority,

Section 12A. Withdrawal of application admitted under section 7, 9 or 10: The Adjudicating Authority may allow the withdrawal of application admitted under section 7 or section 9 or section 10, on an application made by the applicant with the approval of ninety per cent voting share of the committee of creditors, in such manner as may be prescribed.

97. Ans. a. Not exceed fifteen days,

Section 61-Appeals and Appellate Authority: (2) Every appeal under sub-section (1) shall be filed within thirty days before the National Company Law Appellate Tribunal: Provided that the National Company Law Appellate Tribunal may allow an appeal to be filed after the expiry of the said period of thirty days if it is satisfied that there was sufficient cause for not filing the appeal but such period shall not exceed fifteen days.

98. Ans. b. On a question of law arising out of such order within forty-five days from the date of receipt of such order,
Section 62-Appeal to Supreme Court: (1) Any person aggrieved by an order of the National Company Law Appellate Tribunal may file an appeal to the Supreme Court on a question of law arising out of such order under this Code within forty-five days from the date of receipt of such order.
99. Ans. c. Not exceeding fifteen days,
Section 62-Appeal to Supreme Court: (2) The Supreme Court may, if it is satisfied that a person was prevented by sufficient cause from filing an appeal within forty-five days, allow the appeal to be filed within a further period not exceeding fifteen days.
100. Ans. c. Not exceeding ten days,
Section 64-Expeditious disposal of applications: (1) Where an application is not disposed of or an order is not passed within the period specified in this Code, the National Company Law Tribunal or the National Company Law Appellate Tribunal, as the case may be, shall record the reasons for not doing so within the period so specified; and the President of the National Company Law Tribunal or the Chairperson of the National Company Law Appellate Tribunal, as the case may be, may, after taking into account the reasons so recorded, extend the period specified in the Act but not exceeding ten days.
101. Ans. c. Corporate debtor classified as a micro, small or medium enterprise,
Section 54A- Corporate debtors eligible for pre-packaged insolvency resolution process: (1) An application for initiating pre-packaged insolvency resolution process may be made in respect of a corporate debtor classified as a micro, small or medium enterprise under sub-section (1) of section 7 of the Micro, Small and Medium Enterprises Development Act, 2006.
102. Ans. d. All a b & c,
Section 54A- Corporate debtors eligible for pre-packaged insolvency resolution process: (2) Without prejudice to sub-section (1) an application for initiating pre-packaged insolvency resolution process may be made in respect of a corporate debtor, who commits a default referred to in section 4, subject to the following conditions, that— (a) it has not undergone pre-packaged insolvency resolution process or completed corporate insolvency resolution process, as the case may be, during the period of three years preceding the initiation date; (b) it is not undergoing a corporate insolvency resolution process; (c) no order requiring it to be liquidated is passed under section 33; (d) it is eligible to submit a resolution plan under section 29A; (e) the financial creditors of the corporate debtor, not being its related parties, representing such number and such manner as may be specified, have proposed the name of the insolvency professional to be appointed as resolution professional for conducting the pre-packaged insolvency resolution process of the corporate debtor, and the financial creditors of the corporate debtor, not being its

related parties, representing not less than sixty-six per cent. in value of the financial debt due to such creditors, have approved such proposal in such form as may be specified: Provided that where a corporate debtor does not have any financial creditors, not being its related parties, the proposal and approval under this clause shall be provided by such persons as may be specified; (f) the majority of the directors or partners of the corporate debtor, as the case may be, have made a declaration, in such form as may be specified, stating, inter alia,- (i) that the corporate debtor shall file an application for initiating pre-packaged insolvency resolution process within a definite time period not exceeding ninety days; (ii) that the pre-packaged insolvency resolution process is not being initiated to defraud any person; and (iii) the name of the insolvency professional proposed and approved to be appointed as resolution professional under clause (e); (g) the members of the corporate debtor have passed a special resolution, or at least three-fourth of the total number of partners, as the case may be, of the corporate debtor have passed a resolution, approving the filing of an application for initiating pre-packaged insolvency resolution process.

103. Ans. b. Corporate Applicant,

Section 54C-Application to initiate prepackaged insolvency resolution process: (1) Where a corporate debtor meets the requirements of section 54A, a corporate applicant thereof may file an application with the Adjudicating Authority for initiating pre-packaged insolvency resolution process.

104. Ans. d. All a b & c,

Section 54C-Application to initiate prepackaged insolvency resolution process: (3) The corporate applicant shall, along with the application, furnish— (a) the declaration, special resolution or resolution, as the case may be, and the approval of financial creditors for initiating pre-packaged insolvency resolution process in terms of section 54A; (b) the name and written consent, in such form as may be specified, of the insolvency professional proposed to be appointed as resolution professional, as approved under clause (e) of sub-section (2) of section 54A, and his report as referred to in clause (a) of sub-section (1) of section 54B; (c) a declaration regarding the existence of any transactions of the corporate debtor that may be within the scope of provisions in respect of avoidance of transactions under Chapter III or fraudulent or wrongful trading under Chapter VI, in such form as may be specified; (d) information relating to books of account of the corporate debtor and such other documents relating to such period as may be specified.

105. Ans. b. The date of admission of the application,

Section 54C-Application to initiate prepackaged insolvency resolution process: (5) The pre-packaged insolvency resolution process shall commence from the date of admission of the application under clause (a) of sub-section (4).

106. Ans. c. Admit or reject the application within fourteen days of the receipt of the application,

Section 54C-Application to initiate prepackaged insolvency resolution process: (4) The Adjudicating Authority shall, within a period of fourteen days of the receipt of the application, by an order,—(a) admit the application, if it is complete; or (b) reject the application, if it is incomplete: Provided that the Adjudicating Authority shall, before rejecting an application, give notice to the applicant to rectify the defect in the application within seven days from the date of receipt of such notice from the Adjudicating Authority.

107. Ans. b. The pre-packaged insolvency commencement date,
Section 54D-Time-limit for completion of pre-packaged insolvency resolution process: (1)
The pre-packaged insolvency resolution process shall be completed within a period of one hundred and twenty days from the pre-packaged insolvency commencement date.
108. Ans. a. Within a period of ninety days from the pre-packaged insolvency commencement date,
Section 54D-Time-limit for completion of pre-packaged insolvency resolution process: (2)
Without prejudice to sub-section (1), the resolution professional shall submit the resolution plan, as approved by the committee of creditors, to the Adjudicating Authority under sub-section (4) or subsection (12), as the case may be, of section 54K, within a period of ninety days from the pre-packaged insolvency commencement date.
109. Ans. b. Termination of the pre-packaged insolvency resolution process,
Section 54D-Time-limit for completion of pre-packaged insolvency resolution process: (3)
Where no resolution plan is approved by the committee of creditors within the time period referred to in sub-section (2), the resolution professional shall, on the day after the expiry of such time period, file an application with the Adjudicating Authority for termination of the pre-packaged insolvency resolution process in such form and manner as may be specified.
110. Ans. d. All a b & c,
Section 54E-Declaration of moratorium and public announcement during prepackaged insolvency resolution process: (1) The Adjudicating Authority shall, on the pre-packaged insolvency commencement date, along with the order of admission under section 54C — (a) declare a moratorium for the purposes referred to in sub-section (1) read with sub-section (3) of section 14, which shall, mutatis mutandis apply, to the proceedings under this Chapter; (b) appoint a resolution professional — (i) as named in the application, if no disciplinary proceeding is pending against him; or (ii) based on the recommendation made by the Board, if any disciplinary proceeding is pending against the insolvency professional named in the application. (c) cause a public announcement of the initiation of the pre-packaged insolvency resolution process to be made by the resolution professional, in such form and manner as may be specified, immediately after his appointment.
111. Ans. b. Till the date on which the prepackaged insolvency resolution process period comes to an end,

Section 54E-Declaration of moratorium and public announcement during prepackaged insolvency resolution process: (2) The order of moratorium shall have effect from the date of such order till the date on which the prepackaged insolvency resolution process period comes to an end.

112. Ans. d. Shall continue to vest in the Board of Directors or the partners, as the case may be, of the corporate debtor,

Section 54H-Management of affairs of corporate debtor: During the pre-packaged insolvency resolution process period— (a) the management of the affairs of the corporate debtor shall continue to vest in the Board of Directors or the partners, as the case may be, of the corporate debtor, subject to such conditions as may be specified; (b) the Board of Directors or the partners, as the case may be, of the corporate debtor, shall make every endeavour to protect and preserve the value of the property of the corporate debtor, and manage its operations as a going concern; and (c) the promoters, members, personnel and partners, as the case may be, of the corporate debtor, shall exercise and discharge their contractual or statutory rights and obligations in relation to the corporate debtor, subject to the provisions of this Chapter and such other conditions and restrictions as may be prescribed.

113. Ans. b. List of claims confirmed,

Section 54 I-Committee of creditors: (1) The resolution professional shall, within seven days of the pre-packaged insolvency commencement date, constitute a committee of creditors, based on the list of claims confirmed under clause (a) of sub-section (2) of section 54F: Provided that the composition of the committee of creditors shall be altered on the basis of the updated list of claims, in such manner as may be specified, and any such alteration shall not affect the validity of any past decision of the committee of creditors.

114. Ans. a. Seven days of the constitution of the committee of creditors,

Section 54 I-Committee of creditors: (2) The first meeting of the committee of creditors shall be held within seven days of the constitution of the committee of creditors.

115. Ans. a. Two days,

Section 54K-Consideration and approval of resolution plan: (1) The corporate debtor shall submit the base resolution plan, referred to in clause (c) of sub-section (4) of section 54A, to the resolution professional within two days of the pre-packaged insolvency commencement date, and the resolution professional shall present it to the committee of creditors.

116. Ans. b. It does not impair any claims owed by the corporate debtor to the operational creditors,

Section 54K-Consideration and approval of resolution plan: (4) The committee of creditors may approve the base resolution plan for submission to the Adjudicating Authority if it does not impair any claims owed by the corporate debtor to the operational creditors.

117. Ans. b. Where the committee of creditors does not approve the base resolution plan,
Section 54K-Consideration and approval of resolution plan: (5) Where — (a) the committee of creditors does not approve the base resolution plan under sub-section (4); or (b) the base resolution plan impairs any claims owed by the corporate debtor to the operational creditors, the resolution professional shall invite prospective resolution applicants to submit a resolution plan or plans, to compete with the base resolution plan, in such manner as may be specified.
118. Ans. c. Not less than sixty-six per cent,
Section 54K-Consideration and approval of resolution plan: (13) The approval of the resolution plan under subsection (4) or sub-section (12), as the case may be, by the committee of creditors, shall be by a vote of not less than sixty-six per cent. of the voting shares, after considering its feasibility and viability, the manner of distribution proposed, taking into account the order of priority amongst creditors as laid down in sub-section (1) of section 53, including the priority and value of the security interest of a secured creditor and such other requirements as may be specified.
119. Ans. b. Within thirty days of the receipt of such resolution plan,
Section 54L-Approval of resolution plan: (1) If the Adjudicating Authority is satisfied that the resolution plan as approved by the committee of creditors under sub-section (4) or sub-section (12) of section 54K, as the case may be, subject to the conditions provided therein, meets the requirements as referred to in sub-section (2) of section 30, it shall, within thirty days of the receipt of such resolution plan, by order approve the resolution plan: Provided that the Adjudicating Authority shall, before passing an order for approval of a resolution plan under this sub-section, satisfy itself that the resolution plan has provisions for its effective implementation.
120. Ans. d. Either a or b or c,
Section 55-Fast track corporate insolvency resolution process: (2) An application for fast-track corporate insolvency resolution process may be made in respect of the following corporate debtors, namely: — (a) a corporate debtor with assets and income below a level as may be notified by the Central Government; or (b) a corporate debtor with such class of creditors or such amount of debt as may be notified by the Central Government; or (c) such other category of corporate persons as may be notified by the Central Government. In exercise of the powers conferred by section 55(2) of the IBC, the Central Government notifies that an application for the fast-track corporate insolvency resolution process may be made in respect of the following corporate debtors: (a) small company as defined under section 2(85) of the Companies Act, 2013; or (b) start-up (other than partnership firm) defined in the notification of the Government of India Ministry of Commerce and Industry; or (c) Unlisted company with total assets in the financial statement of the immediately preceding financial year, not exceeding one crore rupees.

121. Ans. b. Ninety days from the insolvency commencement date,
Section 56-Time period for completion of fast track corporate insolvency resolution process: (1) Subject to the provisions of sub-section (3), the fast track corporate insolvency resolution process shall be completed within a period of ninety days from the insolvency commencement date.
122. Ans. d. Seventy five percent,
Section 56-Time period for completion of fast track corporate insolvency resolution process: (2) The resolution professional shall file an application to the Adjudicating Authority to extend the period of the fast track corporate insolvency resolution process beyond ninety days if instructed to do so by a resolution passed at a meeting of the committee of creditors and supported by a vote of seventy five percent of the voting share.
123. Ans. c. Not exceeding forty-five days,
Section 56-Time period for completion of fast track corporate insolvency resolution process: (3) On receipt of an application under sub-section (2), if the Adjudicating Authority is satisfied that the subject matter of the case is such that fast track corporate insolvency resolution process cannot be completed within a period of ninety days, it may, by order, extend the duration of such process beyond the said period of ninety days by such further period, as it thinks fit, but not exceeding forty-five days: Provided that any extension of the fast track corporate insolvency resolution process under this section shall not be granted more than once.
124. Ans. c. Corporate person,
Section 59-Voluntary liquidation of corporate persons: (1) A corporate person who intends to liquidate itself voluntarily and has not committed any default may initiate voluntary liquidation proceedings under the provisions of this Chapter.
125. Ans. b. Seven days,
Section 59-Voluntary liquidation of corporate persons: (4) The company shall notify the Registrar of Companies and the Board about the resolution under sub-section (3) to liquidate the company within seven days of such resolution or the subsequent approval by the creditors, as the case may be.
126. Ans. b. Dissolution of corporate person,
Section 59-Voluntary liquidation of corporate persons: (7) Where the affairs of the corporate person have been completely wound up, and its assets completely liquidated, the liquidator shall make an application to the Adjudicating Authority for the dissolution of such corporate person.
127. Ans. d. Any person to whom a debt is owed and includes a financial creditor, an operational creditor, a secured creditor, an unsecured creditor and a decree holder,

Section 3 (10) “creditor” means any person to whom a debt is owed and includes a financial creditor, an operational creditor, a secured creditor, an unsecured creditor and a decree holder.

128. Ans. d. Imprisonment for a term which shall not be less than one year, but which may extend to five years, or with fine, which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both,

Section 69-Punishment for transactions defrauding creditors: If an officer of the corporate debtor or the corporate debtor— (a) has made or caused to be made any gift or transfer of, or charge on, or has caused or connived in the execution of a decree or order against, the property of the corporate debtor; (b) has concealed or removed any part of the property of the corporate debtor within two months before the date of any unsatisfied judgment, decree or order for payment of money obtained against the corporate debtor, such officer of the corporate debtor or the corporate debtor, as the case may be, shall be punishable with imprisonment for a term which shall not be less than one year, but which may extend to five years, or with fine, which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both: Provided that a person shall not be punishable under this section if the acts mentioned in clause (a) were committed more than five years before the insolvency commencement date; or if he proves that, at the time of commission of those acts, he had no intent to defraud the creditors of the corporate debtor.

129. Ans. d. Imprisonment for a term which shall not be less than three years, but may extend to five years or with fine which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both,

Section 73-Punishment for false representations to creditors: Where any officer of the corporate debtor— (a) on or after the insolvency commencement date, makes a false representation or commits any fraud for the purpose of obtaining the consent of the creditors of the corporate debtor or any of them to an agreement with reference to the affairs of the corporate debtor, during the corporate insolvency resolution process, or the liquidation process; (b) prior to the insolvency commencement date, has made any false representation, or committed any fraud, for that purpose, he shall be punishable with imprisonment for a term which shall not be less than three years, but may extend to five years or with fine which shall not be less than one lakh rupees, but may extend to one crore rupees, or with both.

130. Ans. e. Both (b) & (c),

Section 2-Application- The provisions of this Code shall apply to— (a) any company incorporated under the Companies Act, 2013 or under any previous company law; (b) any other company governed by any special Act for the time being in force, except in so far as the said provisions are inconsistent with the provisions of such special Act; (c) any Limited Liability Partnership incorporated under the Limited Liability Partnership Act, 2008; (d) such other body incorporated under any law for the time being in force, as the Central Government may, by notification, specify in this behalf;

(e) Personal guarantors to corporate debtors; (f) partnership firms or proprietorship firms; and (g) individuals, other than persons referred to in clause (e), in relation to their insolvency, liquidation, voluntary liquidation or bankruptcy, as the case may be.

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